

21STCV12160 21STCV12160

County: los-angeles

Division: Civil Law and Motion

Department: 415

Hearing date: 2026-09-03

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C415%2C09%2F03%2F2026

Source SHA-256: 19767a7f690a1077bbba203e5bfae589136437275a482ec61df029a6d19e2cf5

Case Number: 21STCV12160 Hearing Date: September 3, 2026 Dept: 415

Tentative Ruling

Judge Rolf M. Treu, Department 415

HEARING

DATE: September 3, 2026 TRIAL

DATE: Vacated

CASE: Nolasco v. Lee Kum Kee (U.S.A.) Inc., et
al.

CASE

NO.: 21STCV12160

MOTION FOR APPROVAL
OF SETTLEMENT

MOVING PARTY/PARTIES: Plaintiff

Juan Nolasco, individually and on behalf of other aggrieved employees

RESPONDING PARTY/PARTIES: None

PROOF OF SERVICE:

.

Correct Address: Yes

.

Served electronically on March 16,
2026 for September 3, 2026 hearing date

CASE HISTORY:

.
March 30, 2021: Complaint filed.

.
August 30, 2022: Motion to compel
Plaintiff to arbitrate his individual claim granted.

.
September 11, 2023: Motion to compel
arbitration of Plaintiff's representative claims denied.

.
August 28, 2025: Arbitrator issued
award in favor of Plaintiff on Plaintiff's individual claim.

.
January 16, 2026: Parties executed
settlement of remaining claims after mediation.

STATEMENT OF MATERIAL FACTS AND/OR
PROCEEDINGS:

Plaintiff

Juan Nolasco ("Plaintiff"), individually and on behalf of other similarly
situated employees, sued Defendants Lee Kum Kee (U.S.A.), Inc. and Lee Kum Kee
(USA) Foods, Inc. ("Defendants") for wage and hour violations. Plaintiff seeks court approval of the
settlement of Plaintiff's representative claims under the Labor Code Private
Attorneys General Act of 2004, or PAGA. Defendants do not oppose the motion.

TENTATIVE RULING:

Plaintiff's
motion for approval of settlement is DENIED WITHOUT PREJUDICE

Moving

party to give notice.

DISCUSSION:

Motion for approval of settlement

“PAGA

settlements are subject to trial court review and approval, ensuring that any negotiated resolution is fair to those affected.” (Williams v. Superior Court (2017) 3 Cal.5th 531, 549.) Per Labor Code section 2699, subdivision (a), “civil penalties recovered by aggrieved employees shall be distributed as follows: 75 percent to the Labor and Workforce Development Agency . . . and 25 percent to the aggrieved employees.” (Lab. Code, § 2699, subd. (i).)

The

parties agreed to settle the PAGA claims for \$1,250,000 total. Of this amount, the parties propose that Plaintiff’s counsel will receive one-third of the gross settlement amount, or \$416,625, in fees and \$26,817.04 in costs, and the administrator will receive up to \$3,500 in costs for settlement administration. The parties also propose that Plaintiff receive \$10,000. This would leave \$793,016.29 of the settlement for PAGA penalties. Of this amount, the Labor and Workforce Development Agency would receive \$594,762.22, and \$198,254.07 would go to individual penalty payments for aggrieved employees. The Court has concerns regarding the proposed settlement.

The

Court compelled Plaintiff to arbitrate his individual claim against Defendants. The arbitrator issued an award in Plaintiff’s favor. It is therefore unclear to the Court why Plaintiff should receive an additional \$10,000 in settlement funds. Secondly, Plaintiff’s counsel advances evidence that they billed attorneys’ fees in the total amount of \$217,742.50. This lodestar figure is based on billing at hourly rates as high as \$1,275 per hour, which amply compensate Plaintiff’s counsel for their work on this matter. Accordingly, the Court is not inclined to permit Plaintiff’s counsel to recover more than this lodestar figure from the settlement. Other than these issues, the Court considers this settlement fair and reasonable. If the parties stipulate to reduce the

attorneys' fees from the settlement to \$217,742.50 and to eliminate the \$10,000 payment to Plaintiff, the Court will approve the settlement. If not, the Court must continue the matter for further briefing.

Accordingly,

Plaintiff's motion for approval of settlement is DENIED WITHOUT PREJUDICE.

Moving

party to give notice.

IT

IS SO ORDERED.

Dated: September 3, 2026 _____

Rolf

M. Treu

Judge

of the Superior Court

Any party may submit on the tentative ruling by contacting the courtroom via email at SMCDept415@lacourt.ca.gov by no later than 4:00 p.m. the day before the hearing. All interested parties must be copied on the email. It should be noted that if you submit on a tentative ruling the court will still conduct a hearing if any party appears. By submitting on the tentative you have, in essence, waived your right to be present at the hearing, and you should be aware that the court may not adopt the tentative, and may issue an order which modifies the tentative ruling in whole or in part.